

by the evidence to be guilty of the felony of child destruction, the jury may find him guilty of that felony, and thereupon the person convicted shall be liable to be punished as if he had been convicted upon an indictment for child destruction.

(3) Where upon the trial of any person for the felony of child destruction the jury are of opinion that the person charged is not guilty of that felony, but that he is shown by the evidence to be guilty of an offence under the said section fifty-eight of the Offences against the Person Act, 1861, the jury may find him guilty of that offence, and thereupon the person convicted shall be liable to be punished as if he had been convicted upon an indictment under that section.

(4) Section sixty of the Offences against the Person Act, 1861 (which provides that a person acquitted of the murder of any child, or of infanticide, may, if shown by the evidence to be guilty of concealing the birth, be convicted and punished accordingly), shall apply in the case of the acquittal of a person on an indictment for child destruction as it applies to the acquittal of a person on an indictment for murder or infanticide.

61 & 62 Vict.
c. 36.

(5) Section four of the Criminal Evidence Act, 1898, shall have effect as if this Act were included in the schedule to that Act.

Short title
and extent.

3.—(1) This Act may be cited as the *Infant Life (Preservation) Act, 1929*.

(2) This Act shall not extend to Scotland or Northern Ireland.

CHAPTER 35.

An Act to amend section eighteen of the Fire Brigade Pensions Act, 1925.

[10th May 1929.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present

Parliament assembled, and by the authority of the same,
as follows :—

1. The following amendments shall be made in section eighteen of the Fire Brigade Pensions Act, 1925 (which provides for the return of rateable deductions in certain cases) that is to say :

Amendment
of 15 & 16
Geo. 5.c. 47,
s. 18.

- (a) at the end of subsection (1) there shall be inserted the words “together with any sum paid by him to the local authority under subsection (2) of section twenty-two of this Act” ;
- (b) in subsection (2), after the words “rateable deductions,” in both places where those words occur, there shall be inserted the words “and sum” ;
- (c) after subsection (2) there shall be inserted “the following subsection” ;

“(3) Where a professional fireman while serving in the fire brigade, dies in such circumstances that no pension, allowance, or gratuity is payable under section three of this Act at his death, the local authority shall pay to his widow or if he leaves no widow, to his personal representatives the whole of the rateable deductions which have been made from his pay, together with any sum paid by him to the local authority under subsection (2) of section twenty-two of this Act.

Provided that, where the deceased leaves no widow, the local authority may, if in the circumstances of the case they consider that it would be unreasonable to require probate or other proof of the title of his personal representatives, pay or distribute the amount payable under this subsection to or among the persons appearing to the local authority to be beneficially entitled to the personal estate of the deceased or to or among any one or more of those persons as the local authority may think fit, and the local authority, and any officer of the local authority making the payment, shall be discharged from all liability in respect of any such payment or distribution.”

Short title
and citation.
15 & 16 Geo.
5. c. 47.

2. This Act may be cited as the Fire Brigade Pensions Act, 1929, and shall be construed as one with the Fire Brigade Pensions Act, 1925, and that Act and this Act may be cited together as the Fire Brigade Pensions Acts, 1925 and 1929.

CHAPTER 36.

An Act to make void marriages between persons
either of whom is under the age of sixteen.

[10th May 1929.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Avoidance
of marriages
where either
party is
under six-
teen.
48 & 49
Vict. c. 69.

1.—(1) A marriage between persons either of whom is under the age of sixteen shall be void:

Provided that in any proceedings against a person charged under subsection (1) of section five of the Criminal Law Amendment Act, 1885, or charged with indecent assault, it shall be a sufficient defence to prove that at the time when the offence is alleged to have been committed he had reasonable cause to believe that the girl in respect of whom it is alleged to have been committed was his wife.

(2) Nothing in this Act shall affect—

(a) any marriage solemnized or contracted before the passing of this Act, and any such marriage shall be or become valid in any case where, if this Act had not been passed, it would be or become valid, or

(b) in Scotland any right or capacity of legitimation *per subsequens matrimonium*.

Consequen-
tial amend-
ment of
35 & 36
Vict. c. 65.

2. A single woman who has been delivered of a child may, upon proof that before the birth she was a party to what but for the passing of this Act would have been a valid marriage and that the other party thereto had access to her within twelve months